2.1 The Constitutional Convention

Would you like to travel for weeks by horse-drawn wagon along bumpy dirt roads in bad weather to help decide your country's fate? That's what 55 government representatives did to attend a meeting in the spring of 1787.

MAIN IDEA American leaders met at the Constitutional Convention to debate and decide how to reform the national government.





Legend
1 James Madison
2 George Mason
3 George Washington
4 Benjamin Franklin
5 Gouverneur Morris
6 Alexander Hamilton

CRITICAL VIEWING This mural is one of two large-scale scenes painted by Barry Faulkner in 1936. It hangs in the Rotunda for the Charters of Freedom in the National Archives. What do you think the artist meant to convey by the setting he created for James Madison's presentation of the U.S. Constitution to George Washington?

DELEGATES GATHER

By 1787, the United States was growing geographically and economically. It was clear the Articles of Confederation were not able to address complications from that growth. Robert Morris of Pennsylvania and **Alexander Hamilton** of New York believed the country needed a stronger government in order to deal with its problems. Leaders called for a meeting to discuss reform. The meeting, held in Philadelphia on May 25, 1787, was called the **Constitutional Convention**.

Every state sent **delegates**, or representatives, except Rhode Island. The tiny state did not trust the concept of a powerful federal government, which it feared would be the outcome of the Constitutional Convention.

Those who gathered at the Convention to create the Constitution became known as the **Framers**. The Framers were wealthy, influential, and well educated. Many of the Framers had also been leaders during the Revolution, including Pennsylvania delegate Benjamin Franklin. The

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Independence Hall Philadelphia

When Washington presided over the Constitutional Convention, he occupied this chair, called the Rising Sun chair. Note the intricate, carved detail of the sun that would appear behind the head of its occupant. John Folwell designed and carved the Rising Sun chair in 1779. Today, it is housed in the Assembly Room at Independence Hall.



Framers elected George Washington from Virginia to lead the Convention.

Of the Framers at the Convention, James Madison, from Virginia, was the best prepared to craft a constitution for the new nation. Madison's research and knowledge proved the most influential in shaping the ideas the delegates debated and ultimately included in the final document. Because of his active role, Madison is often called the "Father of the Constitution."

Some notable American leaders did not attend. Thomas Jefferson and John Adams were serving as ministers to France and Great Britain. Patrick Henry refused to attend because he fiercely opposed a strong central government.

GOALS AND CHALLENGES

The delegates debated for four months. Because of their experience, the Framers aimed to create a government that was neither too strong, like the British monarchy, nor too weak, as under the Articles of Confederation. The delegates wanted national, state, and local governments to share governing power, an idea called **federalism**. They also felt **dual sovereignty**, or giving state governments certain powers that the national government could not overrule, was important.

Delegates at the Convention agreed upon other main principles. One was republicanism. In a republican government, citizens elect officials to represent them, and these officials must act and govern according to the law. Another principle that guided the delegates was that elections and legislative votes would be decided by majority rule. Majority rule requires that the candidates or legislation receive at least one more than one-half of all votes, even when there are more than two choices. Majority rule means that support for a successful candidate or law must be strong.

Convention delegates supported the idea of federalism but debated how to divide state-federal power. They disagreed about how much power state and national governments should have and about how much authority they should grant the three branches of the federal government.

Madison and other Framers were influenced by the writing of the French political philosopher **Baron Charles de Montesquieu**. Montesquieu developed the idea of the **separation of powers** within a government. He felt that power should be divided equally among three distinct branches that would be responsible for making laws, enforcing laws, and interpreting laws. Each branch would have the ability to limit the power of the other two through a series of **checks and balances**. This way, no one group could gain too much power.

HISTORICAL THINKING

1. **READING CHECK** In what ways did James Madison contribute to the Constitutional Convention?
2. **DESCRIBE** What were the main issues of debate among delegates at the Constitutional Convention?
3. **FORM AND SUPPORT OPINIONS** Which principle under debate at the Convention do you think was most important to the new nation? Support your opinion with evidence from the text.

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